

MEMORANDUM TO THE FILE

Subj: USE OF OTHER THAN FULL AND OPEN COMPETITION FOR AN ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

IDENTIFICATION OF SOURCE:

Vendor Name: Hurco Companies, Inc. and authorized distributors

Vendor City/State: Indianapolis, IN

Cage: 1KVM6

Total Dollar Value: [REDACTED]

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).
2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

Provide a description of the item or service required, to include its intended use, the name of the required source or brand name, and the required delivery date/period of performance.

This requirement is for repair of Hurco 3-axis Vertical Machining Center, P/N: VMX42i s/n S443-1601077KFDCH and Hurco 5-axis Vertical Machining Center, PN:VMX42SRTi s/n S444T2300420DFBAH at [REDACTED] This equipment requires immediate repair due to failed spindles in the following equipment:

Qty (1) ASS'Y, SPINDLE, 15K, CTS. To be installed into Hurco 3-axis Vertical Machining Center, P/N: VMX42i s/n S443-1601077KFDCH
Qty (1) SRTi CTS Spindle ASS'Y, SPINDLE MOTORIZED, DIGITAL. To be installed into Hurco 5-axis Vertical Machining Center, PN: VMX42SRTi s/n S444T2300420DFBAH
[REDACTED]

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING (select applicable area below to open specific form)



A. ONLY ONE RESPONSIBLE SOURCE



B. BRAND NAME



C. UNUSUAL AND COMPELLING URGENCY

26WXR0078

A. ONLY ONE RESPONSIBLE SOURCE (select all that apply):

1. RESTRICTIVE RIGHTS. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

Hurco manufactured the 3-axis Vertical Machining Center and 5-axis Vertical Machining Center. These Hurco Computer Numerical Control (CNC) machines utilize proprietary software, diagnostic tools, and technical data that are not available to the public or other third-party repair vendors. Hurco or its authorized distributor and technical representative, [REDACTED] are the only sources with access to the necessary proprietary schematics, diagnostic codes and firmware required to perform repairs to the 3-axis Vertical Machining Center and 5-axis Vertical Machining Center.

2. EXCLUSIVE LICENSING AGREEMENTS. The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

Hurco is the OEM for 3-axis Vertical Machining Center and 5-axis Vertical Machining Center. Hurco and its authorized distributor and [REDACTED] are the only sources capable of performing the necessary repairs to the 3-axis Vertical Machining Center and 5-axis Vertical Machining Center. These CNC machines operate using Hurco's copyrighted and proprietary WinMax control software. Access to the diagnostic layer of this software is essential for troubleshooting and is not provided to third-party vendors. Only OEM-certified technicians have the required training, diagnostic software, and access to proprietary technical documentation and parts necessary to ensure the machines are repaired to factory specifications. Use of any other source would present an unacceptable risk of equipment damage and failure to meet the Government's minimum requirements. After installation of the replacement spindles, the new spindle must be electronically integrated and calibrated with Hurco's proprietary WinMax control software. This process requires access to a protected service layer of the software to set critical parameters, such as tool runout compensation and thermal growth adjustments. Access to these software diagnostics and calibration routines is restricted to OEM-certified technicians as they possess unique and specialized knowledge of the complex mechanical, electrical, and software integration of this specific equipment. This level of expertise is not available from other sources and is essential to prevent further damage and ensure the equipment is returned to a fully operational and reliable state.

3. OTHER REASONS. Other reason not identified above. Provide details on mission impact if requirement is not solicited from only one source.

Delays in repairing the Hurco 3-axis and 5-axis machines are significantly impacting our ability to meet critical customer deadlines for aircraft component production such as AED and MJU-43. These machines are vital for maintaining the precision and throughput required for tight-tolerance aerospace parts. Extended downtime disrupts workflow, creates production downtime, and increases the risk of late deliveries on mission-critical hardware. Failure to meet these deadlines will compromise customer schedules and affect operational readiness. Due to Hurco only supplying parts to authorized distributors, the only option aside from repair would be complete machine replacement which would [REDACTED] procurement time

B. BRAND NAME. Item required must be a brand name product, or feature of a product, particular to one manufacturer.

C. UNUSUAL AND COMPELLING URGENCY. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits, bids, or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance
3. Explanation of why delivery/commencement of services by the date mentioned above is required:
4. If appropriate, include any additional pertinent information.

IV. CERTIFICATION/APPROVALS:

A. Technical / Requirements Certifications: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.



B. Certification / Approval

Upon the basis of the above statements and information justification, I hereby approve, as the Contracting Officer, the solicitation of the proposed procurement(s) using other than full and open competition.

HELTON.MORGAN.MI
CHELLE
JUNALEE. [REDACTED]
Digitally signed by
HELTON.MORGAN.MICHELLE
JUNALEE [REDACTED]
Date: 2026.03.24 14:05:30 -04'00'

Morgan Helton

03/24/2026

Contracting Officer Signature

Name (Printed) / Phone #

Date